

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIRST SECTION

DECISION

Application no. 24212/15
CAUCASUS MEDIA RESEARCH CENTER PUBLIC ASSOCIATION
against Azerbaijan

The European Court of Human Rights (First Section), sitting on 24 January 2023 as a Committee composed of:

Krzysztof Wojtyczek*, President*,
Lətif Hüseynov,
Ivana Jelić*, judges*,
and Liv Tigerstedt, *Deputy Section Registrar,*

Having regard to:

the application (no. 24212/15) against the Republic of Azerbaijan lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on 12 May 2015 by Caucasus Media Research Center Public Association ("the applicant association"), represented by Mr K. Bagirov, a lawyer based in Azerbaijan;

the decision to give notice of the application to the Azerbaijani Government ("the Government"), represented by their Agent, Mr Ç. Əsgərov;

the decision of the President of the Section to give Mr K. Bagirov leave to represent the applicant in the proceedings before the Court (Rule 36 § 4 (a) *in fine* of the Rules of Court);

the parties' observations;

Having deliberated, decides as follows:

SUBJECT MATTER OF THE CASE

1. The present application concerns the restrictions imposed on the bank account of the applicant association by a domestic court order.

2. On 7 August 2014, following a request submitted by the prosecuting authorities, the Nasimi District Court issued an attachment order in respect of the applicant association's bank accounts, deciding to freeze its bank accounts within the framework of criminal case no. 142006023 for the duration of the criminal investigation.

3. On 24 October 2014 the applicant association appealed against the Nasimi District Court's order of 7 August 2014, claiming its unlawfulness. Together with its appeal, the applicant association also lodged a request for restoration of the time-limit for lodging an appeal, arguing that it had never been informed of the Nasimi District Court's decision of 7 August 2014 and had learned about that decision only on 21 October 2014.

4. On 29 October 2014 the Nasimi District Court dismissed the applicant association's request for restoration of the time-limit for lodging an appeal. The court found that the applicant association had failed to submit any evidence showing that there was a valid reason for missing the three-day time-limit for lodging an appeal.

5. On 3 November 2014 the applicant association appealed against that decision.

6. On 11 November 2014 the Baku Court of Appeal dismissed the appeal. The appellate court's decision was final and was not subject to further appeal.

7. The applicant association complained under Articles 6, 11, 13 and 18 of the Convention and Article 1 of Protocol No. 1 to the Convention that the freezing of its bank accounts by the domestic authorities had violated its Convention rights.

THE COURT'S ASSESSMENT

8. The Court observes that the present application was lodged with the Court on 12 May 2015. In that connection, the applicant association submitted that the last day of the six-month time-limit, that was 11 May 2015, fell on a bank holiday and was a non-working day.

9. The Court notes that in the instant case the final decision of the Baku Court of Appeal was delivered on 11 November 2014. The time-limit laid down by Article 35 § 1 of the Convention therefore started to run on the following day, on 12 November 2014, and expired at midnight on 11 May 2015. The application was lodged on 12 May 2015, that is, after the expiry of the above-mentioned time-limit.

10. In that connection, the Court reiterates that compliance with the six-month time-limit is determined using criteria specific to the Convention. Furthermore, considering the time-limit provided for in Article 35 § 1 of the Convention, there is no indication in this case that the applicant, who was represented by a lawyer who should have been aware of the Court's case-law in this regard, could not have foreseen that the *dies ad quem* would fall on a non-working day and acted accordingly (see *Sabri Güneş v. Turkey* [GC], no.27396/06, § 61, 29 June 2012).

11. Accordingly, the Court concludes that the applicant association has not complied with the six-month rule laid down in Article 35 § 1 of the Convention and the present application must therefore be rejected under

Article 35 §§ 1 and 4 of the Convention for non-compliance with the six-month time-limit.

For these reasons, the Court, unanimously,

Declares the application inadmissible.

Done in English and notified in writing on 16 February 2023.

Liv Tigerstedt Deputy Registrar	Krzysztof Wojtyczek President